

HB 1623 -- EMERGENCY SUSPENSIONS OR RESTRICTIONS OF CERTAIN
LICENSES

SPONSOR: Sassmann

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Professional Registration and Licensing by a vote of 20 to 0. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 12 to 0.

This bill specifies that the Board of Therapeutic Massage and the Board of Chiropractic Examiners can apply to the Administrative Hearing Commission (AHC) for an emergency suspension or restriction of a license for a licensed massage therapist or a licensed chiropractor if the licensee is the subject of a pending criminal indictment or other criminal charge related to the duties and responsibilities of the licensed occupation, and there is reasonable cause to believe that the public health, safety, or welfare is at imminent risk of harm.

Within five days of receiving the complaint, the AHC must conduct a review and, if the AHC determines there is reasonable cause for the Board's complaint, the AHC will enter the order requested by the Board. The order will be effective upon personal service or delivery of a copy at all of the licensee's current addresses on file with the Board. The AHC must then hold an evidentiary hearing on the record within 45 days of the Board's filing or upon final adjudication of any criminal charges to determine if the initial order entered by the AHC will continue in effect and whether a cause for discipline exists.

This bill is similar to HB 58 (2025) and HB 1549 (2024).

PROPONENTS: Supporters say that people who utilize the services of a massage therapist or a chiropractor are in a very vulnerable place when they are receiving treatment. This will strengthen public safety and help build confidence in the conduct and integrity of chiropractors and massage therapists.

Testifying in person for the bill were Representative Sassmann; Mcpa-Mo Chiropractic Physicians Association; Wes Shumate; and Arnie C. Dienoff.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.